IN THE COURT OF [DESIGNATION OF THE PRESIDING OFFICER], [PLACE]

[CASE TYPE] No. ____ of 20__

MEMO OF PARTIES

[NAME OF PLAINTIFF / PETITIONER / COMPLAINANT], aged about [__] years, [son / daughter / wife of] [PARENTAGE], resident of [COMPLETE ADDRESS WITH PIN CODE], Aadhaar No. [IF LAWFULLY REQUIRED], Mobile No. [NUMBER], Email [IF AVAILABLE].

… Plaintiff / Petitioner / Complainant

Versus

[NAME OF DEFENDANT / RESPONDENT / ACCUSED], aged about [__] years, [son / daughter / wife of] [PARENTAGE], resident of [COMPLETE ADDRESS WITH PIN CODE], Aadhaar No. [IF LAWFULLY REQUIRED], Mobile No. [NUMBER], Email [IF AVAILABLE].

… Defendant / Respondent / Accused

Next date of hearing: [DATE]

APPLICATION UNDER ORDER IX RULE 13 READ WITH SECTION 151 CPC FOR SETTING ASIDE THE EX PARTE DECREE DATED [DATE]

Respectfully showeth:

1. That the above-noted suit was decreed ex parte against the applicant / defendant on [DATE].
2. That [the summons was not duly served on the applicant — STATE FACTS / the applicant was prevented by sufficient cause from appearing when the suit was called on for hearing, because __].
3. That the applicant came to know of the ex parte decree on [DATE], when [__], and this application is filed within thirty days thereof [Article 123 of the Limitation Act, 1963]. [If delayed, file an application under Section 5 of the Limitation Act.]
4. That the applicant has a good defence on merits, as [BRIEFLY STATE], and will suffer irreparable loss if the decree is not set aside.
5. That the decree dated [ ] and preceding ex parte order dated [ ] are annexed. This application invokes Order IX Rule 13 against the decree; an application before decree would require the appropriate different provision.
6. That the service record shows [process, address, report and date]. [If challenging service: identify the defect and absence of timely

notice; a mere irregularity is not relied on where actual notice and sufficient time existed.]

7. That [if relying on sufficient cause] on the hearing date [ ] the applicant was prevented from appearing by [specific circumstance], evidenced by [record]. Counsel's inability and the applicant's inability are separately explained where necessary.
8. That limitation under Article 123 is calculated from [decree date / legally available knowledge date for non-service], giving a last date of [ ]. Actual knowledge was acquired on [ ] by [event and proof]; if delayed, a separate condonation application explains [period].
9. That any appeal against the decree, its disposal and the effect of the Explanation to Order IX Rule 13 are disclosed as [ ]. Any execution stay requested is separately justified and is not assumed to follow from filing.
10. That [OPTIONAL: retain only after verifying the cited rule and these facts] the hearing-day impediment is proved by [record]. Applying G.P. Srivastava, it constitutes sufficient cause because [specific connection to inability to attend]; service, actual notice, limitation and subsequent diligence are independently addressed as pleaded.

PRAYER

It is, therefore, respectfully prayed that the ex parte decree dated [DATE] may kindly be set aside, the suit restored to its original number, and the applicant allowed to contest it. It is further prayed that execution of the decree may be stayed during the pendency of this application.

Place: [PLACE] Date: [DATE]

APPLICANT / DEFENDANT

Gagandeep Goel, Adv. (Enrl. No. P/1983/2007)
Gagandeep Goel & Associates | Master Legal Work
(M) 987 220 6969, (E) masterlegalwork@gmail.com
Advocate for the Applicant

IN THE COURT OF [DESIGNATION OF THE PRESIDING OFFICER], [PLACE]

[CASE TYPE] No. ____ of 20__

[NAME OF PLAINTIFF / PETITIONER / COMPLAINANT], aged about [__] years, [son / daughter / wife of] [PARENTAGE], resident of [COMPLETE ADDRESS WITH PIN CODE], Aadhaar No. [IF LAWFULLY REQUIRED], Mobile No. [NUMBER], Email [IF AVAILABLE].

… Plaintiff / Petitioner / Complainant

Versus

[NAME OF DEFENDANT / RESPONDENT / ACCUSED], aged about [__] years, [son / daughter / wife of] [PARENTAGE], resident of [COMPLETE ADDRESS WITH PIN CODE], Aadhaar No. [IF LAWFULLY REQUIRED], Mobile No. [NUMBER], Email [IF AVAILABLE].

… Defendant / Respondent / Accused

AFFIDAVIT

Affidavit of [NAME OF DEPONENT], [S/o / D/o / W/o] [NAME], aged about [__] years, resident of [FULL ADDRESS WITH PIN CODE], Aadhaar No. [IF LAWFULLY REQUIRED], Mobile No. [NUMBER].

I, the above-named deponent, do hereby solemnly affirm and declare as under:

1. That I am competent to swear this affidavit. The accompanying [suit / petition / application] was drafted by counsel on my instructions, read over and explained to me in [LANGUAGE], and is adopted as part of this affidavit. Its facts are true to my knowledge or identified records; legal submissions rest on advice believed true.
2. That [no same or similar proceeding on this cause has been filed / all prior and pending proceedings, outcomes and orders are disclosed here: ___]. Nothing material is concealed.

DEPONENT

VERIFICATION

Verified at [PLACE] on [DATE] that paragraphs 1 and 2 above are true and correct to my knowledge and identified records, with legal submissions based on advice believed true. Nothing material has been concealed.

DEPONENT

Gagandeep Goel, Adv. (Enrl. No. P/1983/2007)
Gagandeep Goel & Associates | Master Legal Work
(M) 987 220 6969, (E) masterlegalwork@gmail.com
Advocate for the Applicant

PREPARATION AND JUDGMENT APPLICATION

MODEL FOR GENERAL REFERENCE ONLY. NOT LEGAL ADVICE. These preparation notes are not part of the document to be signed or filed.

Model format for general reference only. Not legal advice. Adapt to the facts and the court's current rules. Source: masterlegalwork.com

Layout revised 17 October 2026 in the MLW house style: Legal paper, Arial 13, justified text and separate preparation notes. This is a model, not a prescribed court form. Check the current registry and e-filing requirements; mandatory court directions prevail. Use only identity particulars lawfully required by the forum and apply any required masking.

Updated 11 October 2026. Complete every material fact, retain only supported alternatives, and renumber before filing. These notes support professional adaptation; they do not supply missing evidence or guarantee relief.

Filing and relief checks. Annex decree, relevant order sheets, service material and proof of the exact hearing-day impediment. Seek restoration to the appropriate stage and any necessary separate execution protection.

Fact-specific authority. G.P. Srivastava v. R.K. Raizada, (2000) 3 SCC 54; 3 March 2000. Support the sufficient cause that prevented attendance on the relevant hearing date. The decision assists a bona fide explanation; it does not excuse unexplained absence or supply missing evidence. Read the judgment

Source: https://indiankanoon.org/doc/295872/

Before relying on any authority, compare the material facts, procedural stage, statutory version and precise relief; check subsequent treatment and applicable local practice. Keep the authority note separate from the signed pleading. For criminal procedure, determine Section 531 BNSS savings rather than select the code solely from the alleged offence date.

Note: To be sworn before an Oath Commissioner / Notary Public and stamped as required by the applicable rules.